

Executive Engineer, Electricity Distribution Division v. Aneeta Garg

High Court of Judicature at Allahabad · Single Judge · 4 June 2014 · WRIT - C No. 31931 of 2014 · **Notice issued; PLA award stayed except wife's connection restored; listed.**

HEADNOTE

On a licensee's writ against a Permanent Lok Adalat award, the High Court issued notice and stayed the award pending listing, without deciding the Clause 4.15(C) single-point contention, but directed immediate restoration of the wife's electricity connection.

FACTUAL SUMMARY

The distribution licensee disconnected both a husband's and a wife's electricity connections after theft was reported on the husband's supply, asserting that two connections existed in the same premises contrary to Clause 4.15(C) of the U.P. Electricity Supply Code, 2005, which entitles a consumer only to a single-point connection. The Permanent Lok Adalat, by award dated 29 May 2014, found the two connections installed at different places. The Executive Engineer challenged that finding as perverse and sought to sustain both disconnections.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.15

single-point connection; two connections in same premises

HOLDING

On the licensee's writ asserting that Clause 4.15(C) permits only a single-point connection inside the premises and that both the husband's and wife's connections were therefore rightly disconnected after theft on the husband's supply, the Court issued notice and stayed the Permanent Lok Adalat award dated 29.5.2014, except that respondent Aneeta Garg's connection no. 6110/058072 was directed to be restored forthwith. Later listing orders continued the stay. The Clause 4.15(C) contention and the alleged perversity of the Adalat's finding that the two connections stood at different places were not decided. ¶ 1

FLAG Counsel cited Clause 4.15 (C); the Court neither verified the sub-clause letter nor construed it.

PRINCIPLE TAGS

single-point-connection-two-connections-in-same-premises On a licensee's writ against a Permanent Lok Adalat award, the High Court issued notice and stayed the award pending listing, without deciding the Clause 4.15(C) single-point contention, but directed immediate restoration of the wife's electricity connection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.15(C) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 CONFINES A CONSUMER TO A SINGLE-POINT CONNECTION AND BARS TWO CONNECTIONS IN THE SAME PREMISES.

¶ 1

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT'S FINDING THAT THE TWO CONNECTIONS WERE INSTALLED AT DIFFERENT PLACES IS PERVERSE.

¶ 1

NOT DECIDED — WHETHER REPORTED THEFT ON THE HUSBAND'S CONNECTION JUSTIFIED DISCONNECTION OF THE WIFE'S CONNECTION.

¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.